

1 ENGROSSED HOUSE
2 BILL NO. 2984

By: Gise and Pae of the House

3 and

4 Reinhardt of the Senate
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7 An Act relating to poor persons; directing the
8 Department of Human Services to publish annual
9 report; providing information the report shall
10 contain; authorizing the Department to include
11 contextual information; directing the Department to
12 submit the report and make report publicly available
13 on website; providing that the provisions shall be
14 carried out within existing appropriations; providing
15 that provisions shall not require Department to
16 create new data systems or hire additional employees;
17 directing the Department to make reasonable efforts;
18 providing for codification; and providing an
19 effective date.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 271 of Title 56, unless there is
created a duplication in numbering, reads as follows:

A. The Department of Human Services shall, using existing
resources and data already collected by the Department, compile and
publish an annual report regarding program integrity and payment
accuracy within the child care subsidy program administered pursuant

1 to Title 56 of the Oklahoma Statutes and Chapter 40 of Title 340 of
2 the Oklahoma Administrative Code.

3 B. The purpose of the report shall be to promote
4 accountability, identify potential improper payments, support high-
5 quality child care providers, and ensure public funds are directed
6 to services actually delivered to Oklahoma children and working
7 families.

8 C. The report shall, to the extent practicable using existing
9 data systems, include:

10 1. The payment error rate for the child care subsidy program,
11 if such rate is calculated by the Department or required by federal
12 reporting;

13 2. The total amount of overpayments identified during the
14 preceding fiscal year, including those associated with attendance
15 reporting discrepancies when such information is available;

16 3. The total amount of overpayments recovered during the
17 preceding fiscal year;

18 4. The number of provider investigations completed related to
19 the child care subsidy program;

20 5. The number of adverse actions taken against providers,
21 including suspensions, terminations, or disqualifications;

22 6. Any trends or risk factors identified by the Department
23 related to improper payments, including patterns that may indicate
24 inaccurate attendance reporting or other program vulnerabilities;

1 7. A summary of education, outreach, or technical assistance
2 provided by the Department to help child care providers maintain
3 compliance and avoid improper payments; and

4 8. The number of current daycare facilities to date, child care
5 capacity, the number of daycare facilities losses, and child care
6 capacity loss each year.

7 D. The Department may include any additional contextual
8 information necessary to accurately interpret the data provided in
9 the report and to highlight the performance of providers operating
10 in good-faith compliance with program requirements.

11 E. The Department shall submit the report to the Governor, the
12 Speaker of the Oklahoma House of Representatives, and the President
13 Pro Tempore of the Oklahoma State Senate no later than November 1 of
14 each year and shall make the report publicly available on the
15 Department's website.

16 F. The requirements of this section shall be carried out within
17 existing appropriations and shall not require the Department to
18 create new data systems or hire additional full-time employees.

19 G. As part of the annual report required by this section, the
20 Department shall, using existing licensing and administrative data
21 to the extent available, include information regarding the supply
22 and capacity of child care providers in this state, including:

23 1. The total number of licensed child care facilities operating
24 in the state during the reporting period;

1 2. The estimated licensed child care capacity statewide and by
2 region, to the extent such information is available;

3 3. The number of licensed child care facilities that opened
4 during the preceding fiscal year;

5 4. The number of licensed child care facilities that closed
6 during the preceding fiscal year;

7 5. The estimated reduction in licensed child care capacity
8 associated with such closures, to the extent practicable; and

9 6. A summary of information obtained by the Department
10 regarding the primary reasons for provider closures.

11 H. The Department shall make reasonable efforts, within
12 existing resources, to contact providers that have closed during the
13 reporting period to request voluntary feedback regarding the reasons
14 for closure. Participation by former providers shall be voluntary,
15 and nothing in this subsection shall be construed to require the
16 Department to obtain responses in every case.

17 I. Nothing in this section shall be construed to require the
18 creation of new data systems or mandatory surveys of providers.

19 SECTION 2. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 272 of Title 56, unless there is
21 created a duplication in numbering, reads as follows:

22 A. The Department of Human Services is hereby directed to amend
23 Section 2.5.3(c) of the State of Oklahoma's Child Care and
24 Development Fund (CCDF) Plan, relating to circumstances under which

1 the lead agency may discontinue assistance prior to the minimum
2 twelve-month redetermination period.

3 B. Such amendment shall:

4 1. Keep current selection of subsection "iii. a change in
5 residency outside of the State or Territory" as the identified
6 limited circumstance for discontinuation of assistance prior to the
7 twelve-month redetermination; and

8 2. Select and adopt subsection "ii. Excessive unexplained
9 absences despite multiple attempts by the lead agency or designated
10 entity to contact the family and provider, including the prior
11 notification of a possible discontinuation of assistance".

12 C. The Department shall further provide, publish, and maintain
13 within the lead agency's written policy a clear definition
14 specifying ninety (90) consecutive days as the number of unexplained
15 absences that shall be deemed "excessive" for purposes of
16 discontinuation under this subsection.

17 D. The Department shall implement the amendment required by
18 this act in the next available revision or submission of the Child
19 Care and Development Fund (CCDF) Plan and shall ensure compliance
20 with all applicable federal requirements.

21 SECTION 3. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 24th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate